

HEARING ON SUMMARY MOTION JUDGMENT

FILED BY: NATIONSTAR MORTGAGE, LLC

TENTATIVE RULING:

The Court continues the hearing on this motion to July 30, 2026, at 9:00 a.m.

3. 9:00 AM CASE NUMBER: C24-00153

CASE NAME: ADRIANNA DUCKETT VS. ROGER CHANG

***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM**

FILED BY:

TENTATIVE RULING:

The Court is in receipt of the Declaration of Fatima Montanez Regarding Disbursement. The Declaration notes that forty-five settlement checks remain uncashed but does not indicate whether any checks were returned undelivered or confirm that it conducted an "Aggrieved Employee Address Search." Upon receipt of confirmation that all efforts to find and distribute funds to Aggrieved Employees previously approved by the Court have been complied with, the Court will approve the final distribution.

4. 9:00 AM CASE NUMBER: C24-02345

CASE NAME: CAROLINE SUN CHANG VS. BMW OF NORTH AMERICA, LLC

***HEARING ON MOTION IN RE: ATTORNEY'S FEES, COSTS, AND EXPENSES**

FILED BY: CHANG, CAROLINE SUN

TENTATIVE RULING:

Pursuant to a settlement agreement, Plaintiff Caroline Sun Change moves for a determination regarding her attorney's fees and costs. Defendants BMW of North America and Import Motors Inc object to the amount sought by Plaintiff. Although Plaintiff appeared to anticipate that Defendants would object to the fees in their entirety, that is not the case. Defendants also object that Plaintiff has not filed a Memorandum of Costs.

The Court noted several issues with Plaintiff's requested attorney's fees. Defendants identified many of these as well. Plaintiff appears to have overbilled in more than one way. The first notable overbilling relates to duplication. Plaintiff tends to bill 0.1 (or more) each to several completely related tasks, thus resulting in rounding up for each of those tasks. For example, Plaintiff bills separately for reviewing different chunks of documents, or for Drafting Special Interrogatories and the Declaration of Necessity.

The second area of overbilling relates to unreasonable amounts of time expended. For example, Plaintiff billed 0.4 (24 minutes) to reviewing each of the Defendant's Answers. These answers contained five pages of semi-substantive but entirely standard information and affirmative defenses. The Court was able to review these Answers in less than three minutes each, and the Court is not a lemon law expert. The disingenuous overbilling that is *easy* to identify renders suspect the other times